

		all damages caused thereby.” (<i>Id.</i> at pp. 323-324 [internal quotation marks and citations omitted].) The fifth cause of action alleges LaCilento colluded with opposing counsel to “rig” the Underlying Action and “judicially kidnap [Plaintiff’s] 10-year old boy.” (FAC ¶ 83.) Counsel agreed LaCilento “would do a lousy job representing [Plaintiff]” and “that the putative father would be awarded sole and exclusive custody.” (<i>Id.</i> at ¶ 84.) As discussed above, the underlying torts of legal malpractice and fraud have not been adequately pled as to LaCilento. The demurrer is sustained as to the fifth cause of action. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve within 15 days of service of the notice of ruling. Defendant LaCilento to give notice. <u>Motion to Strike Portions of First Amended Complaint</u> Defendant Arthur J. LaCilento’s motion to strike portions of Plaintiff Nicole Dodson’s First Amended Complaint (“FAC”) is DENIED as moot. In light of the court’s concurrent ruling regarding LaCilento’s demurrer, the motion to strike is denied as moot. The Case Management Conference is continued to November 19, 2026, at 09:00 am in Department C10. Defendant LaCilento to give notice.
7	Ketzel vs. Laguna Beach Police Department	Defendant City of Laguna Beach moves for summary judgment on the Complaint of Plaintiff Hunter Ketzel. For the following reasons, the motion is DENIED. The court OVERRULES Defendant City’s evidentiary objection nos. 3, 6, and 7 to the Ketzel Declaration. The court does not rule on the remainder of objections asserted by Defendant City or Plaintiff, as they are not material to the disposition of this motion. (Code Civ. Proc., § 437c(q).) <u>Standard on MSJ</u> Under Code of Civil Procedure section 437c(c), a summary judgment motion shall be granted if all the papers submitted show there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. A defendant meets its burden on summary judgment by showing that the plaintiff cannot prove its causes of action, or by establishing a complete defense to the plaintiff’s causes of action. (Code Civ. Proc., 437c(p)(2).) If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder</i>

v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.) If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. (Code Civ. Proc., § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851.)

First Cause of Action (Whistleblower Retaliation)

The Complaint pleads a single cause of action for whistleblower retaliation in violation of Labor Code section 1102.5. According to the Complaint, Plaintiff complained of incidents wherein Plaintiff was instructed to generate an arrest report for arrests that would require Plaintiff to make false statements on those official police reports. (Compl. ¶¶ 15-18.)

Labor Code section 1102.5(b) is California's general whistleblower statute. (*McVeigh v. Recology San Francisco* (2013) 213 Cal.App.4th 443, 468.) It provides in relevant part that: "An employer . . . shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, . . . to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, . . . if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties." (Lab. Code, § 1102.5(b).)

In *Lawson v. PPG Architectural Finishes, Inc.*, the California Supreme Court explains the standard governing Section 1102.5 claims on summary judgment. (*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 717-718.) The court explained that:

Section 1102.6 provides the governing framework for the presentation and evaluation of whistleblower retaliation claims brought under section 1102.5. First, it places the burden on the plaintiff to establish, by a preponderance of the evidence, that retaliation for an employee's protected activities was a contributing factor in a contested employment action Once the plaintiff has made the required showing, the burden shifts to the employer to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the plaintiff not engaged in protected activity."

(*Id.* at p. 718.)

Disclosures indisputably made in "the context of *internal personnel matters* involving a supervisor and her employee, rather than the disclosure of a legal violation," do not amount to whistleblowing. (*Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1384–1385 *disapproved of on other grounds by Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703.) In *Patten*, a principal had received complaints from females students of a male teacher peering into the girls'